

23NWCV01111 23NWCV01111

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Case Number: 23NWCV01111 Hearing Date: September 17, 2026 Dept: L

MEDLINE MANAGEMENT CORPORATION, A CA CORP vs DAN
KLOSS, et al.

CASE NO.: 23NWCV01111

HEARING: September 17, 2026 @ 9:30 a.m.

#4

TENTATIVE ORDER

Defendant/Plaintiff/Cross-Defendant Dan
Kloss' Motion for Trial Preference is GRANTED.

Moving party to give notice.

Background

This is an unlawful detainer case
("UD Action") regarding real property located at 10700-10712 Sessler Street,
South Gate, CA 90280 ("Subject Property"). On April 12, 2023, Plaintiff Medline
Management Corporation ("MEDLINE") filed this action against Defendants Dan
Kloss and Ioana Kloss, doing business as CNC Aero Machining.

On April 9, 2024, this case was
consolidated with a related case titled Dan Kloss vs Jamal Dawood, et al.,
LASC Case No. 23NWCV02306 ("Title Action"). (4/9/24 Minute Order.). The Title
Action was filed on April 12, 2023. A First Amended Complaint (FAC) was filed

in that action on April 18, 2024. The FAC alleges that, in 2021, Defendants Jamal Dawood, Christine Armani-Dawood, Quantum Properties LLC, and Does 1 to 100 fraudulently induced KLOSS to grant his one-half interest in the Subject Property via a Grant Deed to Quantum Properties LLC ("Grant Deed") in order to "safeguard" his interest. (FAC, ¶ 16.) In return, Defendants issued an LLC membership certification transferring a one-half interest in Quantum Properties LLC to Precision Forging Dies, Inc. However, the membership interest was intended to be transferred to KLOSS, not Precision Forging Dies, Inc. Through the action, KLOSS seeks "to cancel and rescind the fraudulently obtained Grant Deed or alternative, to involuntarily dissolve the LLC and have Plaintiff's one-half interest in the Property transferred back to Plaintiff." (FAC, ¶ 28.)

The Title Action FAC alleges the following causes of action:

1.
Cancellation Of Written Instrument (Civ. Code § 3412);
2.
Fraud;
3.
Negligent Misrepresentation;
4.
Breach Of Oral Contract;
5.
Financial Elder Abuse;
6.
Slander Of Title;
7.
Intentional Infliction of Emotional Distress;
8.
Unfair Business Practices;

9.

Declaratory Relief; and

10.

Involuntary Dissolution.

Defendants Commercial Funding,

LLC, Colony Capital Management LLC, Colony Capital LLC, and Shore Pine LLC were later named as Does 1 to 4, respectively.

On May 23, 2024,

Defendant/Cross-Complainant Quantum Properties LLC ("QUANTUM") filed a Cross-Complaint in the Title Action against Cross-Defendants Dan Kloss and Ioana Kloss, doing business as CNC Aero Machining, Anca Tiplea, and Roes 1 to 20.

On February 25, 2025, QUANTUM

filed the First Amended Cross-Complaint (FACC), adding C&C Aerol Machining and Aerospace Machining Company, Precision Forging Dies, Inc. as Cross-Defendants. On May 29, 2025, QUANTUM filed the Second Amended Cross-Complaint.

On August 1, 2025, Defendant

Commercial Funding, LLC filed a Cross-Complaint in the Title Action.

On August 3, 2026, Defendants Colony

Capital Management LLC and Colony Capital LLC were dismissed without prejudice from the Title Action FAC.

Defendant/Plaintiff/Cross-Defendant

Dan Kloss (hereinafter, "Kloss") now moves for a trial preference.

Plaintiff Medline Management Corporation,

Defendants/Cross-Complainants Quantum Properties, LLC and Commercial Funding, LLC, and Defendants Jamal Dawood, Christine Armani-Dawood, Commercial Funding, LLC, and Shore Pine, LLC (hereinafter, "Opposing Parties") oppose the Motion.

The Court notes that this is a renewed

Motion for Trial Preference following the Court's denial of such Motion without prejudice on July 21, 2026. (7/21/26 Minute Order.)

Trial is currently set for June 7, 2027.

Legal Standard

“On petition of any party over 70, [Code of Civil Procedure] section 36, subdivision (a), provides that the granting of calendar preference is mandatory in some circumstances.” (Fox v. Superior Court (“Fox”) (2018) 21 Cal.App.5th 529, 533.) A court must grant a trial preference under Code Civil Procedure section 36, subdivision (a) where the following two factors are present: (1) the party has a substantial interest in the action as a whole; and (2) the health of the party is such that a preference is necessary to prevent prejudicing the party’s interest in the litigation. (Ibid.)

Where a motion for trial preference is granted, the clerk shall set the case for trial not more than 120 days from that date. (Koch-Ash v. Superior Court (1986) 180 Cal.App.3d 689, 694.)

Discussion

Kloss requests a trial preference under Code of Civil Procedure section 36, subdivision (a). Kloss is currently 77 years old. (Kloss Decl., ¶ 3.) Kloss has a substantial interest in the action as the sole plaintiff in the Title Action. Further,

Dr. Sandy Liu, Kloss’ treating medical oncologist, states that Kloss has been diagnosed with metastatic prostate cancer with small cell neuroendocrine transformation, with metastasis to the liver and bone. (Liu Decl., ¶ 5.) Dr. Liu states that Kloss is only able to participate in limited litigation activities—specifically, during periods of increased symptoms following treatment, “his ability to sustain attention, process information, communicate clearly, and tolerate prolonged sitting or questioning is materially reduced.” (Liu Decl., ¶¶ 6-7.) During such periods, Kloss experiences “fatigue, pain, weakness, nausea, difficulty concentrating, and reduced stamina, which impair his ability to remain attentive, communicate with counsel, and tolerate extended questioning or court proceedings.” (Liu Decl., ¶ 9.) Dr. Liu finds that there is a “substantial medical risk” such limitations will become more severe in the next months. (Liu Decl., ¶¶ 8, 10.) Dr. Liu notes that, “[a]lthough Mr. Kloss may presently be able to perform limited

litigation-related tasks on days when his symptoms are less severe, this should not be understood to mean that he is medically well or capable of participating normally.” (Liu Decl., ¶ 11.)

Kloss offers his own declaration to corroborate these symptoms. (Kloss Decl., ¶¶ 6, 8.) Kloss states that, when his symptoms are more severe, he has “difficulty sustaining the concentration and energy necessary for lengthy discussions with my attorneys, reviewing documents, preparing for testimony, or participating in other prolonged litigation activities.” (Kloss Decl., ¶ 13.) For example, Kloss’ deposition had to be scheduled based on his treatment schedule and ability to testify. (Zuetel Decl., ¶ 12.) Kloss participated in his deposition on July 17, 2026—however, it had to be stopped short because he developed a headache and became tired. (Kloss Decl., ¶ 14; Zuetel Decl., ¶ 13.) Further, Kloss’ counsel has observed that Kloss’ ability to participate varies day by day and that there are occasions when his symptoms have prevented counsel from discussing litigation matters with Kloss. (Zuetel Decl., ¶¶ 15-17.) Kloss’ counsel asserts that, if Kloss’ condition further declines, counsel will be unable to communicate with him, resulting in prejudice to his case. (Zuetel Decl., ¶¶ 18-19.)

Based on such evidence, Kloss argues that his health is such that a preference is necessary to prevent prejudice to his interest in the litigation. Kloss notes that, in analyzing whether to grant a trial preference, the Court need not weigh interests, such as convenience to the parties and scheduling issues.

Opposing Parties argue that Kloss’ additional evidence “does not establish the requisite causal connection between Plaintiff’s health and the need for an expedited trial within 120 days,” especially where the current trial date is only nine months away. (Opp., 2:13-15.) Kloss concedes that he is presently able to participate, and has participated, in the litigation. Opposing Parties assert that the fact that Kloss requires scheduling accommodations does not warrant a trial preference. Further, Dr. Liu’s prognosis regarding Kloss’ potential future health decline is “speculative and temporally indefinite.” (Opp., 8:6.)

Alternatively, if the Court is inclined to grant a trial preference, Opposing Parties request that trial is set on January 15, 2027, the outermost limits of the 120-day period.

In reply, Kloss reiterates his arguments.

Further, Kloss argues that the Opposing Parties have failed to disprove Dr. Liu's medical opinion regarding Kloss' future health decline. Regarding Opposing Parties' argument that Kloss has been able to participate in the litigation, Dr. Liu stated that his limited participation "should not be understood to mean that he is medically well or capable of participating normally." (Liu Decl., ¶11.)

The Court is persuaded that Kloss' health is such that he would be prejudiced if a trial preference is not granted. Kloss demonstrates that 1) he suffers from a medical condition that severely limits to ability to participate in the litigation, and 2) there is a substantial likelihood that he condition will worsen over the coming months. As to the first point, Kloss offers evidence that he suffers from prostate cancer and is undergoing chemotherapy. (Liu Decl., ¶¶ 5-6.) Kloss' ability to participate in the litigation is affected by his condition and the symptoms caused by treatment. (Liu Decl., ¶ 7, 9.) The fact that Kloss is able to participate sporadically in the litigation when his symptoms are minimal does not necessarily mean that a trial preference is inappropriate. Kloss provides evidence that his condition is expected worsen over time. Specifically, Dr. Liu states that there is a "substantial medical risk" that Kloss' current limitations will worsen over the next months. (Liu Decl., ¶¶ 8, 11.) Overall, the Court finds that a trial preference is appropriate based on Kloss' current condition and its predicted trajectory.

Accordingly, Kloss' Motion for Trial Preference is granted.

Trial is to be set within 120 days of this hearing pursuant to Code of Civil Procedure section 36, subdivision (f).